

Mukhtar Washeem v. Uttar Pradesh Power Corporation Limited

High Court of Judicature at Allahabad · Division Bench · 24 November 2020 · Writ-C No. 18439 of 2020 · **Writ disposed; petitioner relegated to Clause 6.5 for the disputed bill.**

HEADNOTE

A consumer who disputed the accuracy of an electricity bill was not granted certiorari on the demand. The High Court disposed of the writ with liberty to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within 15 days, directing that authority to consider the case and pass orders in accordance with law within one month.

FACTUAL SUMMARY

Mukhtar Washeem petitioned the Allahabad High Court to quash an electricity bill dated 14 October 2020 issued by U.P. Power Corporation Limited officers, disputing the bill's accuracy. After an adjournment on 17 November 2020 for the Corporation to take instructions, its counsel submitted that the petitioner had a remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, and that the competent authority would consider any such representation and pass orders within the stipulated period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-statutory-remedy

HOLDING

A writ seeking certiorari to quash an electricity bill whose accuracy is disputed is disposed of with liberty to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within 15 days; that authority is to consider the case and pass appropriate orders in accordance with law within one month, without the High Court examining the demand on merits. ¶ 1

PRINCIPLE TAGS

clause-6.5-statutory-remedy-disputed-bill The Court accepted that a consumer disputing bill accuracy should invoke Clause 6.5 rather than have the writ court quash the demand. ¶ 1

clause-6.5-statutory-remedy Writ disposed with liberty to approach the Clause 6.5 authority, which was directed to consider and pass orders in accordance with law within one month. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ACCURACY OF THE ELECTRICITY BILL/DEMAND DATED 14.10.2020

Writ disposed without examining the demand on merits; relegated to Clause 6.5. ¶ 1